

ANNEX I.

[*Translation*¹.]

CONVENTION
BETWEEN GREECE AND BULGARIA
RESPECTING RECIPROCAL EMIGRATION²

SIGNED AT NEUILLY-SUR-SEINE, NOVEMBER 27th, 1919.

[*Official French text forwarded on August 25th, 1920, by the Minister of Greece in London, for registration. The registration of this Convention took place on August 25th, 1920.*]

As provided in Article 56, paragraph 2, of the Treaty of Peace with Bulgaria, concluded the 27th November, 1919, and in accordance with the decision of the Principal Allied and Associated Powers of 27th November, 1919, to the following effect :

“Having regard to Article 56, paragraph 2, of the Treaty of Peace with Bulgaria, the Principal Allied and Associated Powers consider it opportune that the reciprocal voluntary emigration of the racial, religious and linguistic minorities in Greece and Bulgaria should be regulated by a convention concluded between those two Powers in the terms decided upon this day”,

The undersigned Plenipotentiaries of Greece, of the one part, And of Bulgaria, of the other part,

After exchanging their full powers, respectively found in good and due form, have agreed as follows :

Article 1.

The High Contracting Parties recognize the right of those of their subjects who belong to racial, religious or linguistic minorities to emigrate freely to their respective territories.

Article 2.

The High Contracting Parties undertake to facilitate by all the means at their disposal the exercise of the right referred to in Article 1, and not to place directly or indirectly any restriction on the right of emigration, notwithstanding laws or regulations to the contrary, which in this respect shall be deemed to be without effect.

¹ Translated by the Secretariat of the League of Nations.

² The exchange of ratifications took place at Paris, on the 9th August, 1920.

In particular, the exercise of the right of emigration shall not affect the pecuniary rights of the emigrants, as these may exist at the moment of emigration.

Article 3.

No obstacle shall be placed in the way of the departure of a voluntary emigrant for any reason whatever, save in case of a final sentence to imprisonment for an infraction of ordinary law. In case of a sentence which is not yet final, or of penal proceedings under ordinary law against an emigrant, he shall be handed over to the authorities of the country to which he is going by the authorities of the prosecuting country with a view to his trial.

Article 4.

The right of voluntary emigration belongs to every person over 18 years of age. It may be exercised during a period of two years from the date of constitution of the Mixed Commission provided for in Article 8, by means of a declaration before its representatives. A declaration of intention to emigrate on the part of a husband shall imply a declaration by his wife; a declaration of intention to emigrate on the part of parents or guardians shall imply a declaration by their children or wards under 18 years of age.

Article 5.

Emigrants shall lose the nationality of the country which they leave the moment they quit it and shall acquire that of the country of destination from the moment of their arrival there.

Article 6.

Persons who, in execution of the foregoing provisions, exercise the right of emigration, shall be free to take with them or to have transported their movable property of every kind without any duty, whether export or import, being levied from them on this account.

Similarly, in cases where the right of emigration is exercised by members of communities (including churches, convents, schools, hospitals or foundations of any kind whatever) which on this account shall have to be dissolved, the Mixed Commission provided for in Article 8 shall determine whether and in what circumstances such members shall have the option of freely taking with them or having transported the movable property belonging to the communities.

Article 7.

Real property, rural or urban, belonging to voluntary emigrants or to the communities to which Article 6 refers, shall be liquidated in accordance with the following provisions by the Mixed Commission provided for in Article 9.

Article 8.

Within a period of three months from the entry into force of the present Convention, a Mixed Commission shall be created, composed of one member nominated by each of the contracting States concerned and of an equal number of members of a different nationality, from among whom also the president shall be chosen, who shall moreover be nominated by the Council of the League of Nations.

Article 9.

The Mixed Commission shall have the duties of supervising and facilitating the voluntary emigration referred to in the present Convention and of liquidating the real property of emigrants.

It will fix the conditions of emigration and of liquidation of real property.

In general, the Mixed Commission shall have full powers to take the measures rendered necessary by the execution of the present Convention and to decide all questions to which this Convention may give rise.

The decisions of the Commission shall be by majority; the President shall have the casting vote.

Article 10.

The Mixed Commission shall have full power to have a valuation made of real property, the interested Parties being heard or duly summoned to a hearing.

The government of the country where the liquidation takes place shall pay to the Mixed Commission, under conditions to be fixed by the latter, and for transmission to the rightful Parties, the value of the real property liquidated, which shall remain the property of the said government.

Article 11.

Funds shall be advanced to the Mixed Commission by the States concerned with a view to facilitating emigration and under conditions fixed by the Commission. The Commission shall advance to emigrants, according to the funds available, the value of their real property.

Article 12.

Persons who before the entry into force of the present Convention have left the territory of one of the contracting States and have already established themselves in the territory of the State to which they belong by race, religion or language, shall have a right to the value of the property left by them in the country which they have left, such value to be that resulting from the liquidation which will be made of the property by the Mixed Commission.

Article 13.

The expenses of the maintenance and working of the Mixed Commission and its agencies shall be borne by the governments concerned in proportions to be determined by the Commission.

Article 14.

The present Convention does not prejudice the rights accruing to the persons concerned under the provisions of treaties or conventions concluded or to be concluded for the regulation of current matters.

Article 15.

The High Contracting Parties undertake to make in their respective legislation the modifications necessary to secure the execution of the present Convention.

Article 16.

Within the period of one year from its entry into force, the present Convention shall be open to the adhesion of States with a common frontier with one of the signatory States.

Such adhesion shall be notified through diplomatic channels to the Government of the French Republic and by it to the signatory or acceding States, and also to the Mixed Commission. It shall have effect a fortnight after the notification to the French Government.

The present Convention shall be ratified and the respective ratifications shall be deposited in Paris by the Signatory Powers at the same time as their ratifications of the Treaty of Peace signed at Neuilly-sur-Seine on the 27th November, 1919. It shall enter into force at the same time as the said Treaty shall enter into force as between Greece and Bulgaria.

Done at Neuilly-sur-Seine the twenty-seventh November, one thousand nine hundred and nineteen, in one copy, which shall remain deposited in the archives of the Government of the French Republic, and of which authentic copies shall be given to each of the signatory Powers.

(L. S.) (*Signed*) ELEFTHERIOS VENISELOS.

(L. S.) (*Signed*) N. POLITIS.

(L. S.) (*Signed*) AL. STAMBOLIISKI.

Certified true copy.

London, the 25th August, 1920.

The Minister of Greece:

(*Signed*) D. CACLAMANOS.
